Vineyard Municipal Code

Chapter 5.18 Towing License

Section 10.04.060 Towing Regulations

5.18 Towing License

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5.18.010 Definitions

The following terms, as used in this chapter, shall have the meanings indicated. However, in the event of a conflict between a definition in this chapter and a definition set forth in Utah code section 72-9-102, the latter definition shall apply.

AUTHORIZED VEHICLE: A vehicle parked on private property for which permission has been granted to park such vehicle.

BOOT: The use of a device by a parking enforcement or tow truck service business to temporarily immobilize, disable, or electronically monitor a vehicle for purposes of enforcing parking restrictions.

MOTOR CARRIER: A person engaged in or transacting the business of transporting passengers, freight, merchandise, or other property by a commercial vehicle on a highway within the state of Utah and includes a tow truck service business.

PARKING ENFORCEMENT OPERATION: The providing of parking enforcement services for compensation within the corporate limits of Vineyard City.

PARKING ENFORCEMENT SERVICE: The practice of booting vehicles without the owner's consent for the purpose of enforcing parking restrictions on public streets, private property, or public parking lots restricted to use.

PERSON: An individual, firm, partnership, corporation, company, association, or joint stock association.

TOW TRUCK: A motor vehicle constructed, designed, altered, or equipped primarily for the purpose of towing or removing damaged, disabled, abandoned, seized, or impounded vehicles from a highway or other place by means of a crane, hoist, tow bar, tow line, dolly, tilt bed, or other means.

TOW TRUCK SERVICE: The functions and any ancillary operations associated with recovering, removing, and towing a vehicle and its load from a highway or other place by means of a tow truck.

TOWING OPERATION: The providing of tow truck services for compensation within the corporate limits of Vineyard City, whether or not the towing extends beyond the city limits. Towing operations also include the storage of a towed vehicle, pending its return to the owner thereof by the person or the agent who towed such vehicle.

5.18.020 License Required; Scope

A. License Required: Except as otherwise provided in this section, it is unlawful for any person, tow truck motor carrier, or person with a place of business located within Vineyard City, to conduct a towing or parking enforcement operation within the corporate limits of Vineyard City without a Vineyard City business license authorizing such operations.

B. License Exemption: No Vineyard City business license is required to conduct a towing or parking enforcement operation if:

1. A tow truck motor carrier has a county or municipal business license for a place of business located within a county or municipality other than Vineyard City but within the state of Utah.

a. Information Required: Notwithstanding the foregoing, a business which conducts towing operations within Vineyard City shall first provide the following information to the Vineyard City business license office:

(1) Business name, address, and telephone number;

(2) Evidence of a current business license issued by another municipality or a county within Utah;

(3) Current fee schedule;

(4) Identification of vehicle operators employed by the business;

(5) Description, vehicle identification number, and license number of each tow truck used in the business; and

(6) Evidence of the surety bond and property damage insurance required by subsections 5.18.030 A7 and A8 of this chapter.

b. Current Information: If any of the information in subsections B1a(1) through B1a(6) of this section changes, the business shall deliver current information to the Vineyard City business license office within ten (10) business days following the change.

c. Certificate Issued: Upon receipt of a complete application, a certificate may be issued to a business which conducts towing or parking enforcement.

d. Certificate Renewal: A certificate issued under this chapter shall be renewed annually by showing conformity with subsections B1a(1) through B1a(6) of this section.

e. Denial, Suspension, And Revocation Of Certification: Failure to provide changes as required by subsection B1b of this section to the Vineyard City business license office, failure to comply with the requirements in subsections B1a(1) through B1a(6) of this section, and any violation of section 10.40.060 of this code, as applicable, shall be grounds for denial, suspension, or revocation of any certification issued under this chapter.

5.18.030 License Application

A. Application: An application for a business license to conduct a towing or parking enforcement operation shall be filed in writing with the Vineyard City business license office, as set forth in section 5.02 of this title. In addition to the information required by such section, the license application shall include:

1. The business name, which cannot be substantially similar to the name of any Vineyard City department responsible for parking enforcement or tow truck services;
2. Identification of vehicle operators employed by the business;
3. A description, vehicle identification number, and license plate number of each tow truck and parking enforcement vehicle used in the business;
4. A valid driver license and certification card issued by the Utah department of transportation for each tow truck driver;
5. Current department of transportation certificates for each tow truck motor carrier, tow truck, and driver;
6. A statement disclosing whether any person listed in the application or any driver employed by the business has ever been convicted of a felony or misdemeanor, other than minor traffic tickets, and if so, the nature of the offense, and where and when it was committed;
7. Competent evidence of a surety bond of one thousand dollars ($1,000.00) from good and sufficient sureties to ensure continued compliance with this chapter;
8. Competent evidence of valid property damage liability insurance in the amount of twenty five thousand dollars ($25,000.00) issued by an insurance company authorized to do business in the state of Utah with the applicant named as an insured, including the policy number and insurance company name;
9. Competent evidence that the tow truck service business stores vehicles in a secure towing and impound yard that complies with state law; and
10. A list of current fees for all services performed by the business.

B. Change Of Information: If any of the information in subsections A1 through A10 of this section changes, the business shall deliver current information to the Vineyard City business license office within ten (10) business days following the change.

C. Denial, Suspension, And Revocation Of License: Failure to provide changes as required by subsection B of this section to the Vineyard City business license office, failure to comply with the requirements in subsections A1 through A10 of this section, and any violation of section 10.40.060 of this code, as applicable, shall be grounds for denial, suspension, or revocation of any business license issued under this chapter.

5.18.040 License Issuance And Renewal

A. License Issuance: Upon receipt of a complete application, a business license may be issued to a business which conducts towing or parking enforcement operations and which has a principal place of business within the corporate limits of Vineyard City.

B. License Renewal: A business license issued under this chapter may be renewed by showing conformity with subsections 5.18.030 A1 through A10 of this chapter and section 10.04.060 of this code.

5.18.050 License Fees

The fee for a business entity desiring to provide tow truck or parking enforcement services within Vineyard City shall be as shown on the consolidated fee schedule adopted by the municipal council. Such fee shall be in

addition to any other fee and shall be assessed in consideration of the expense incurred by the city to conduct required background checks prior to issuing a license.

5.18.060 Duty To Display License

A. Every employee of a towing or parking enforcement business shall personally carry:

1. A valid Utah driver license which allows for operation of a tow truck or parking enforcement vehicle;
2. In the case of tow truck operators only, evidence of a personal certification card issued by the Utah department of transportation;
3. Evidence of a valid business license or certificate issued by Vineyard City, if a license or certificate is required pursuant to chapter 5.18.020 of this chapter; and
4. A business identification card giving the name, address and phone number of the business and identifying the operator as an employee thereof.

5.18.070 Investigation By Police Department

A. Each application for a license shall be referred to the Utah County Sheriff's Office, which may investigate to determine compliance with the requirements in this section.

B. Background checks may be conducted on all employees of a business desiring to obtain a license under this chapter.

C. A business license may be denied if a background check discloses any of the following:

1. Conviction of a crime or any pending criminal citation or information not yet adjudicated involving moral turpitude, theft, narcotics, illegal drugs, or property damage unless a period of not less than five (5) years has elapsed from the date of the conviction or the date of release from confinement for such offense, whichever is later; or
2. Conviction of a felony for any reason unless a period of not less than ten (10) years has elapsed since the date of conviction or the date of release from confinement for such offense, whichever is later.
3. Any person aggrieved by a decision to deny a business license may appeal such decision in accordance with section 5.02.100 of this title.

5.18.080 Storage And Parking Of Tow Trucks

A. Tow trucks shall not be parked within a residential neighborhood or residential district.

B. Tow trucks must be stored in approved locations.

HISTORY

Adopted by Ord. 2018-14 on 10/10/2018

10.04.060 Towing Regulations

A. Definitions: The definitions set forth in section 5.18.010 of this code shall apply to this section.

B. Towing Generally: An owner or a person in lawful possession or control of real property may, to the extent authorized by this section, tow away or boot any unauthorized vehicle located on the property. An unauthorized vehicle is any vehicle parked or stopped in violation of private property parking regulations which govern parking for authorized tenants and visitors or which restrict parking in a loading zone, handicapped zone, fire lane, or a no parking zone.

C. Towing Request: No person may conduct a towing or parking enforcement operation unless:

1. Authorized by the owner of the private property on which the vehicle is located, or the owner's agent; or

2. Requested by a peace officer or by an order of a person acting on behalf of a law enforcement agency.

D. Report Towing To Law Enforcement: Except as otherwise ordered by a peace officer or a person acting on behalf of a law enforcement agency, after performing a towing operation without the vehicle owner's knowledge, the tow operator shall report the towing of the vehicle to the Utah Valley Dispatch Special Service District within the soonest of one (1) hour or immediately upon arriving at the place of storage or impound of the vehicle using the current published nonemergency telephone number of the Utah County Sheriff's Office. The report shall include:

1. The vehicle's description, including its vehicle identification number and license number or other identification number issued by a state agency;

2. The name of the person, firm, or corporation impounding or towing the vehicle;

3. The name of the person who requested removal of the vehicle;

4. The date, time, and location of the vehicle's removal;

5. Reason(s) for removal of the vehicle;

6. The location where the subject vehicle will be kept; and

7. A telephone number, staffed twenty-four (24) hours a day, which an owner can call to arrange for release of the vehicle.

E. Towing Criteria: No person may conduct a towing or parking enforcement operation other than on a vehicle which has been continuously parked for more than forty-eight (48) hours, unless:

1. "No parking" areas, restricted parking spaces, and visitor parking spaces, if any, are clearly marked with signage installed in such a manner as to provide adequate notice to those utilizing the parking area, including marking of the boundaries between the subject parking lot and any adjoining parking lot owned by another person; and

2. The following signs are posted at, or immediately adjacent to, each entrance to the property notice that unauthorized vehicles may be towed from the parking lot or booted.

a. A top sign that is 24 inches tall by 18 inches wide and has:

(1) A blue, reflective background with a 1/2 inch white border;

(2) Two-inch, white letters at the top of the sign with the capitalized words "Lot is Patrolled";

(3) A white towing logo that is 6 inches tall and 16 inches wide that depicts an entire tow truck, a tow hook, and an entire vehicle being towed; and

(4) Two-inch, white letters at the bottom of the sign with the capitalized words "Towing Enforced"; and

b. A bottom sign that is 24 inches tall by 18 inches wide with a 1/2 inch white, reflective border, and has:

(1) A top half that is red background with white, reflective letters indicating:

a. Who is authorized to park or restricted from parking at the property; and

b. Any type of vehicle prohibited from parking at the property; and

(2) A bottom half that has white, reflective background with red letters indicating:

a. The name and telephone number of the tow truck motor carrier that the property owner has authorized to patrol the property; and

b. The Internet web address "tow.utah.gov"; and

c. Be posted within approximately five feet (5') of each entrance to a parking lot..

(1) For purposes of this subsection, a "parking lot entrance" shall mean any access allowing the entrance or exit of a vehicle between a private parking lot and a city street unless such access is not the property of the parking lot owner. In such case, the parking lot entrance shall mean:

a. The intersection of the parking lot property line and the property line of the access point; or

b. Any privately owned road connected to a public right of way leading to the entrance of a parking lot located on private property.

(2) A sign posted directly over a driveway leading to an underground lot shall be deemed to meet the location requirements of this subsection.

(3) If signs cannot be posted within five feet (5') from the entrance to a parking lot for reasons of practical difficulty (such as the necessity of drilling a hole through concrete, removing a tree or shrubs, or because of an immediately adjacent private driveway not owned by the owner of the parking lot), a sign may be placed as close as reasonably practicable to the parking lot entrance. However, no sign shall be further than thirty feet (30') from the edge of the curb that borders the private property.

(4) In addition to the requirements under subsection E2, any additional signs posted within or on the private real property further designating parking restrictions, must meet the requirements listed under subsections E2a through E2d.

F. Towing On Private Property: No person may conduct a towing or parking enforcement operation regarding a vehicle located on private property unless:

1. The owner of the subject real property or the owner's agent:

    a. Conforms to the requirements of subsections F2a and G of this section;

    b. Discloses in writing to each tenant of the property when the tenant first occupies the property:

        (1) The rules which govern the use of parking areas;

        (2) That parking a vehicle in violation of such rules may subject the vehicle to a towing or parking enforcement operation; and

        (3) That the tenant may contest a towing or parking enforcement operation as provided in this chapter;

2. The towing or parking enforcement business conducting the operation:

    a. Except as otherwise provided in subsection G of this section, receives from the property owner or the owner's agent, who shall not be affiliated in any way with the towing or parking enforcement business, a written or telephonic request for each towing or parking enforcement of a particular vehicle;

    b. Posts a copy of the towing or parking enforcement business's fee schedule in a prominent place at the location where vehicles are released from storage; and

    c. Maintains personnel authorized to release any vehicle to its owner twenty four (24) hours each day and who can respond within one hour of a request for release of a vehicle;

3. The towing or parking enforcement business employee who conducts, or attempts to conduct, a towing or parking enforcement operation:

    a. Wears either:

        (1) A readily identifiable shirt, blouse, or other top article of clothing with the name of the business and the first name of the employee contained thereon and readable from a distance of six feet (6'); or

        (2) A prominently visible identification badge on the front of employee's clothing with the name of the business and the first name of the employee contained thereon and readable from a distance of six feet (6');

    b. Possesses evidence of:

        (1) Either a written or telephonic towing or parking enforcement request from the property owner or the owner's agent, or the contract required by subsection G of this section and a license or certification as a Vineyard City qualified towing or parking enforcement business, and

        (2) The fee schedule required by subsection F2b of this section;

    c. Upon request, provides the name and telephone number of the property owner or owner's agent, and shows the evidence required by subsection F3b of this section to:

(1) A person whose vehicle is subject to the towing or parking enforcement operation; and

(2) Any law enforcement officer;

d. Prior to mechanically connecting a vehicle to a tow truck or booting a vehicle, documents, through the use of date and time stamped digital photography or digital video, the precise nature of the violation of the private property parking regulations; and

e. Upon booting a vehicle, places a notice on the driver's door window which indicates:

(1) In large letters (24 - 36 font size), "This vehicle has been booted";

(2) The name and telephone number of the towing or parking enforcement business and the name of the person that immobilized the vehicle;

(3) A telephone number, staffed twenty four (24) hours a day, which the vehicle owner may call to arrange for release of the vehicle;

(4) Applicable fees; and

(5) The following statement: A person who tows or boots a vehicle unlawfully may be subject to criminal and civil penalties as provided in Vineyard City Code 10.40.060. A person whose vehicle is towed or booted shall be entitled, upon request, to the name and telephone number of the owner of the property or owner's agent where the tow or boot occurred.

f. Upon towing a vehicle, takes the vehicle directly to a storage lot that complies with the requirements of state law and this Section; and is no further than five (5) miles from the city of Vineyard.

g. Once the vehicle is mechanically connected to the tow truck, the tow operator may only disconnect the vehicle:

(1) Upon arrival at the storage lot;

(2) To release the vehicle to the driver, owner, or owner's agent; or

(3) To abandon the tow and leave the vehicle where the tow operator originally found it.

4. Any person conducting a towing or parking enforcement operation of a vehicle located on private property shall:

a. Maintain the documentation required under subsection F3d of this section for no less than one year;

b. Make available, prior to taking payment for the towing or parking enforcement operation, a copy of the documentation required under subsection F3d of this section, upon request by any of the following:

(1) The driver or owner of the vehicle that was subject to the towing or parking enforcement operation, or the owner's agent; and

(2) Any law enforcement officer; and

c. Prior to taking any payment related to a towing or parking enforcement operation, provide the driver or owner of the towed or booted vehicle, or the owner's authorized agent, with a statement of the owner's rights regarding towing and parking enforcement operations that has been approved by Vineyard City.

G. Towing Request Exemption: The written or telephonic request required under subsection F2a of this section prior to initiating a towing or parking enforcement operation is not required if all of the following requirements are met:

1. The towing or parking enforcement business conducting the towing or parking enforcement operation has been designated as a Vineyard City qualified towing or parking enforcement business by the Mayor, or the Mayor's designee;
    a. A licensed towing or parking enforcement business may seek this qualification by completing and signing a written application on a form provided by the city.

    b. The licensed applicant business shall be granted this qualification upon satisfying the Mayor, or the Mayor's designee, that the applicant's business operations comply with all the contractual obligations required under subsection G3 of this section.

2. The owner of the property where the towing or parking enforcement operation takes place complies with all the contractual obligations required under subsection G3 of this section; and

3. The towing and parking enforcement business and the private property owner must have, and comply with, a contract that contains provisions documenting and requiring all of the following:

    a. A right of appeal to the property owner by the owner or operator of the vehicle booted or towed;

    b. The right of the property owner to grant the appeal and waive part or all of the fees and charges incurred by the appellant;

        (1) A documented plan for providing adequate visitor parking;

        (2) Reasonable, as determined by the Mayor or the Mayor's designee, temporary permit parking on a 24/7 availability basis for any property where the owner requires permit parking;

        (3) Signage that, in the Mayor or Mayor's designee's reasonable opinion, provides fair notice to all persons of all limitations on parking on the property; and

        (4) That the towing or parking enforcement operator's total maximum fees and charges for towing a vehicle, including the first day of storage (subsequent days of storage may be charged in accordance with the rules and rates set forth in Rule 909-19-13, Utah Administrative Code), shall not exceed eighty percent (80%) of the maximum fees set through Rule 909-19-11, Utah Administrative Code.

4. It is a violation of this section to conduct a towing or parking enforcement operation without a written or telephonic request pursuant to this subsection G if either party to a contract described in subsection G3 of this section fails to comply with a contract provision required under subsection G3 of this section.

5. Appeals by towing or parking enforcement operators or property owners of decisions by the Mayor, or the Mayor's designee, made under this subsection G may be appealed to the Vineyard City Administrative Law Judge, pursuant to section 2.26.060.

H. Towing A Booted Vehicle: A booted vehicle may not be removed from the site sooner than two (2) hours after the time of booting.

I. Payment for Towed Vehicle: Except as otherwise provided in this section, a towing or parking enforcement business conducting a towing or parking enforcement operation pursuant to this section shall release the subject vehicle to its owner or agent immediately upon payment of applicable fees authorized by this section or by rule R909-19, Utah administrative code, as amended.

1. The towing or parking enforcement business shall accept payment offered in cash or by major credit card, but shall not be obligated to accept checks or payment in coins and shall maintain sufficient cash on hand to make change of up to forty dollars ($40.00).

2. Every towing or parking enforcement business providing services pursuant to this subsection shall post in a conspicuous place upon its business premises a true copy of this section.

3. A parking enforcement business shall be limited to a maximum booting fee, per vehicle, as established in UCA 41-6a-1409(4)and may not charge any other fee for a parking enforcement operation. If an immobilized vehicle is towed, no fee of any kind relating to booting may be charged in addition to towing, storage, or other applicable fees. If a vehicle is towed or booted unlawfully, no fee shall be payable.

4. If the vehicle owner or agent arrives at the vehicle before the towing or parking enforcement operator has mechanically connected the vehicle to a tow truck or booting device, the towing or parking enforcement operator shall:

    a. Not continue to tow or boot the vehicle; and

    b. Not be entitled to tow or boot the vehicle or to charge any fee whatsoever if the vehicle is promptly removed from the premises.

5. If a tow truck is mechanically connected to a vehicle, the tow truck shall be in possession of the vehicle. If the vehicle owner or agent attempts to retrieve the vehicle before the vehicle is removed from the property, the maximum towing or parking enforcement fee shall not exceed fifty percent (50%) of the posted rate schedule.

6. No parking enforcement fee, other than fees authorized by this subsection, shall be charged as a condition of releasing a booted vehicle.

7. A vehicle shall be released immediately upon payment of any required fees authorized by this section.

J. No Consideration For Towing Agreements: Property owners, managers, or their agents shall not receive any consideration whatsoever from any towing or parking enforcement business in exchange for utilizing such business's services to tow or boot unauthorized vehicles from the owner's property or for entering into a services agreement with a towing or parking enforcement business.

K. Towing Damages: Any person acting to remove or otherwise disturb any vehicle parked, stalled, or otherwise left on privately owned or controlled property, and any person owning or controlling such private

property, or either of them, shall be liable to the owner, owner's agent, or driver of a vehicle, or each of them, for consequential and incidental damages arising from any interference with the ownership or use of such vehicle which does not comply with the requirements of this section.

L. Criminal Penalties: It shall be unlawful to:

1. Tamper with or remove from a vehicle a lawfully installed boot without the authorization of the towing or parking enforcement operator who applied the boot, which authorization shall not be withheld in violation of state or local law; and

2. To disconnect a vehicle mechanically connected to a tow truck without the authorization of the towing or parking enforcement operator lawfully in possession of the vehicle, which authorization shall not be withheld in violation of state or local law.

3. Violation of this subsection or any subsection or provision of this section is a class B misdemeanor.

M. Civil Penalties: In addition to any other penalty, a civil action for damages or to abate a violation of this chapter may be brought by any aggrieved person.

1. A person who authorizes, tows, or immobilizes a vehicle from private property in violation of the provisions of this section is liable in a civil action for a penalty of up to five hundred dollars ($500.00) as the court may determine. A civil action under this subsection may not be commenced later than one hundred eighty (180) days after occurrence of the violation.

2. Lack of compliance with the requirements of subsections E, F, and G of this section shall be prima facie evidence of a violation of this section.

3. The remedies provided for in this subsection shall be cumulative and not exclusive.

4. Nothing in this section shall preclude prosecution of any crime, including, but not limited to, criminal mischief, fraud, and theft.

HISTORY
Adopted by Ord. 2018-14 on 10/10/2018
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